Hi, Neighbor!

Silver Creek May 2024 Newsletter

MAY CLUBHOUSE EVENTS:

May 1	- Ladies' Bunko & Nibbles	6:30 p.m.
May 13	- Community Dinner	6:00 p.m.
May 14	- Preparedness Night	6:30 p.m.
May 16	- HOA Board Meeting	6:30 p.m.

IT'S NACHO BASIC H.O.A. DINNER!

You're gonna love this month's menu!

Everyone invited: Monday, May 13, 6:00 p.m.

-Last names A-L: please bring salads or fruit

-Last names M-Z: please bring desserts

SILVER CREEK PREPAREDNESS NIGHT

SOUTHWEST UTAH PUBLIC HEALTH DEPARTMENT

Personal & Family Preparedness Presentation

Learn how to create a plan for your family's safety in emergencies:

- Get a kit
- Make a plan
- Be informed
- Get involved

Don't be scared, be prepared!

Tuesday May 14th, 6:30-7:30pm

Silvercreek Clubhouse

Refreshments Will Be Served

Questions: Call Jeff Snow 435-256-9546

NEW NEIGHBORS

Welcome to **Val** and **Keri Carte**r who have purchased Unit #24.

Previously full-time residents of Lehi, they came to know and love Silver Creek through Val's brother and sister-in-law, Bruce and LaDawn Carter, who have lived in Silver Creek for years.

Val and Keri have both retired from the State of Utah; Val as an electrician, and Keri as a secretary.

Val enjoys golf and woodcarving. Keri loves quilting and sewing.

Their decision to have a home in St. George leads them both back to family roots. Keri claims a great grandmother from Santa Clara and Val had a grandmother from Pine Valley.

Delighted to have **Tanner** and **Makenzi Rogers** join our community!

Silver Creek Unit #60 is the Rogers' first home purchase. They were married two years ago and just moved from West Haven, Utah.

Tanner graduated from Weber State University with a degree in Construction Management just last week. *Congratulations!* He is working for a company developing Black Desert Resort.

Up until their move last month, Makenzi worked for the Davis County Jail. She is passionate about cooking and would love to share recipes.

Both Makenzi and Tanner love outdoor sports and camping.

WELCOME TO BOARD MEETINGS

In Person, or via Improved Zoom

Silver Creek HOA Board Meetings are held in the clubhouse at 6:30 p.m. on the third Thursday of every month.

Monthly Board Meetings include a comment period during which homeowners may address the board.

A new audio system provides an improved experience for homeowners who wish to participate or just listen in by Zoom.

Here's How to Join by Zoom

1- All homeowners will be sent an email from CAM (the property management company) with the Agenda and a Zoom link to HOA Board Meetings by Monday of the third week of the month.

2- if you wish to participate via Zoom, you will need to download the Zoom app on your device (computer, tablet or phone).

3- On the day of the meeting, click on the Zoom link in your email to open the Zoom app to the scheduled meeting and sign-in.

You should be able to sign-in by 6:15 pm. You can sign-in with any name you would like but, in order to make a comment, we need to know your last name or your unit number to verify you are a Homeowner.

4- Please be aware that you will be muted when you sign in. The moderator has been asked to keep all Zoom participants muted so that we can all hear the meeting in progress.

5- You may make a comment during the Homeowner Comment time at the beginning of a Board Meeting by typing your comment in the Chat box. When appropriate, the moderator will bring your comment to the attention of the Board.

If you would like to address the Board verbally during the Homeowner Comment time, let the moderator know in the Chat Box. The moderator will unmute you to allow everyone to hear your comment.

Thank you for your interest in our shared efforts to look after the best interests of Silver Creek.

HOME IMPROVEMENT

Springtime gets a lot of us thinking about fixing up around the place.

Silver Creek is all in favor of improvement!

However, remember that in this planned community, any exterior improvements or modifications to landscaping or structures require advance approval from the Architectural Control Committee.

This is to ensure the preservation of the uniform visual theme that defines our unique neighborhood.

If you have some exterior project in mind, your first step is to fill out the one-page Architectural Control Review Application. It's available from Lindsey Dover at Adam.lindseydover+schoar@gmail.com

Thanks!

UPDATED POOL RULES PLANNED

Your HOA Board, at its monthly meeting in April, endorsed three resolutions governing the use and protection of our prized swimming pools.

In compliance with state law, before adopting or amending a community association rule, the board gives this notice to all owners that it is considering a change to the rules.

You will find the three resolutions in the following five pages attached to this newsletter.

In accordance with state law, the Board will provide an open forum at its regular meeting on May 16 to give owners an opportunity to be heard by the Board before it takes final action on the resolutions.

The proposals before the Board bring pool rules and policies into conformity with the Association's governing documents and emphasize required sign-in procedures as the primary mechanism to ensure authorized pool access.

SILVER CREEK TOWNHOMES ASSOCIATION
SWIMMING POOL ACCESS RULES

MAY 2024
(proposed)

(Text in red identifies governing document authority or requirement)

RIGHT OF ENJOYMENT

Every Owner is entitled to a right of enjoyment (CC&Rs Article II Section 2) *of the Association's Common Areas, subject to restrictions permitted in the Association's Declaration (CC&Rs) and to rules promulgated by the Board of Trustees.*

The goal of the Association, and the goal of these rules, is to maximize and to protect such enjoyment for all Owners. To that end, these rules are intended to be straightforward, reasonable, enforceable, and enforced. Similarly, consequences for violating these rules are intended to be the same. The simple consequence for rule violations is denial of access.

These rules are not intended to be harsh. They are intended only to be clear. None of us wants to feel like we live in a police state, and none of us wants to feel like we run one.

Please consider these rules as appeals to our better angels. When we act responsibly and in good faith toward our neighbors we don't have to focus on penalties.

Because you, as an Owner, assume responsibility for your guests, please make sure they understand and observe these rules so that your guests, and you, and all of us may enjoy and protect our beautiful Common Area pools and clubhouse.

RULES

The following rules governing the use of the swimming pools in the Common Area of the Silver Creek Townhomes Association are adopted by resolution of the Silver Creek HOA Board of Trustees (Amended and Restated Bylaws 2024 3.1.c.9) *on _____ (date).*

These rules supersede and replace all previously promulgated rules and policies related to swimming pool use.

1. EXCLUSIVE USE

The Silver Creek clubhouse, pools, hot tub and adjacent recreation areas are Private Facilities for the exclusive use of Silver Creek homeowners, their families (CC&Rs, Article II Section 4)* and guests who are accompanied by the homeowner. Any exception must be approved in writing by the Board of Trustees.

2. ELECTRONIC KEY FOB AND USE PASS – ASSUMPTION OF LIABILITY

• Each owner's right of enjoyment (2003 Amendment 1 CC&R Article II Section 2.i) of the Common Area pools and clubhouse is accessed by use of an electronic key fob assigned to the owner by the Association. The electronic key fob must be attached to a valid, numbered Silver Creek Use Pass.

• Use of the Owner's key fob to access facilities constitutes the Owner's **agreement** to abide by all rules (Amended and Restated Bylaws 2024 1.5) governing pool use.

• Use of the Owner's electronic key fob constitutes the Owner's acknowledgement and **agreement** that the electronic key fob may be de-activated by an authorized HOA representative for any evident breach of rules associated with its use. (Amended and Restated Bylaws 2024 1.5)

• Use of the Owner's electronic key fob to access pool facilities constitutes the Owner's further acknowledgement and **agreement** that such de-activation may be immediate and continuous pending any appeal or further investigation. (Amended and Restated Bylaws 2024 1.5)

• Use of Owner's electronic key fob constitutes the Owner's acknowledgement that the findings of an authorized HOA representative concerning rule violations will be final and binding and without recourse once the finding is approved by the Board of Trustees.

3. DELEGATION OF RIGHT OF ENJOYMENT

• An Owner is deemed to delegate his right of enjoyment to the Common Area and facilities to the members of his family (CC&Rs Article II, Section 4),* subject to the limitations on numbers (2002 Amendment 1 CC&R

Article II Section 2.b) and the minimum age of the Owner's Registered Responsible Representative as specified in rule #4, below. No one who is a nonresident has any such delegable right of enjoyment. (CC&Rs Article II Section 4)*

• Authorized pool users must not open doors or gates to pool areas to admit any persons not covered by their Use Pass.

• **When an Owner delegates his right of enjoyment to the Common Area and facilities, he assumes all responsibility for the behavior of everyone admitted to the facilities on his Use Pass, and assumes liability for any damage or rule violations attributable to them**.

4. REGISTRATION

• Upon entering pool areas, the Owner, or his Registered Responsible Representative, defined as a member of his family (CC&Rs Article II Section 4)* at least 18 years old, must immediately fill out the Authorized Homeowner Registration form. It is found in the northeast corner of the indoor pool house.

•Registration consists of recording the Use Pass number, Date, Time of Entry, Name of the Owner or his adult Registered Responsible Representative, and the total number of individuals in the party. That number may not exceed (2003 Amendment 1 CC&R Article II Section 2.b) eight (8) persons unless Owner has prior written authorization from the Pool and Clubhouse Security Committee.

•The Owner, or his Registered Responsible Representative, must be present in the pool area and in possession of the Use Pass during the entire time any persons admitted on the Use Pass are there.

Failure of any persons to comply with registration procedures may result in Owner's loss of pool privileges as well as the assessment of an administrative fee. Pool areas are under 24-hour video surveillance.

5. COMPLIANCE WITH POSTED HEALTH AND SAFETY REGULATIONS

•Users will comply with all posted health and Safety Regulations, including having taken a cleansing shower before entering a pool.

• Users will comply with all posted **restrictions** including age and capacity restrictions for the hot tub and pools, and will comply with posted prohibitions against diving, and against posted restrictions on items prohibited in pool areas.

• When the number of users in a pool reaches the maximum posted capacity, the pool is full, and all others must wait outside the pool areas until users already there leave.

Failure of users to comply with posted health or safety or maximum capacity regulations may result in Owner's loss of pool privileges as well as the assessment of an administrative fee.

6. COMPLIANCE WITH POSTED POOL HOURS

• Users will be in pool areas only during posted pool hours, and will observe any times and rules for specified, restricted use as may be posted.

Failure to comply may result in Owner's loss of pool privileges as well as assessment of an administrative fee.

7. OBSERVANCE OF COMMON COURTESY

• Users will be considerate of the safety and enjoyment of all those around them.

• Users will not engage in activities that block or impede others' movements or activities in the pools.

• Users will not conduct themselves in any manner that is insensitive to others, or is disruptive, boisterous, disrespectful, un-safe or destructive to property.

Failure to comply may result in Owner's loss of pool privileges as well as assessment of an administrative fee.

8. REPORTING VIOLATIONS

• Please report rule violations, concerns or problems to **Community Association Management (CAM)** by logging onto its website, camutah.com, or by calling (435) 674-2002. Our Association Manger as of this date is Cory Blackburn.

•Please report any illegal activity, including trespassing, to St. George police by calling (435) 627-4300.

• Please do not report violations to individual Board members.

*CC&Rs, Article II Section 4: Delegation of Use. An Owner is deemed to delegate his right of enjoyment to the Common Area and facilities to the members of his family, his tenants, or contract purchasers who reside on the Property. No one who is a nonresident shall have any such delegable right of enjoyment.

BOARD RESOLUTION CREATING
POOL AND CLUBHOUSE SECURITY COMMITTEE
MAY 2024
(proposed)

The following policies and procedures for enforcing rules governing use of swimming pools in the Common Area of the Silver Creek Townhomes Association are adopted by resolution of the Silver Creek HOA Board of Trustees on _____ (date).

These policies supersede and replace all previously promulgated and policies and procedures for enforcing rules governing swimming pool use.

The Board hereby designates a **Pool and Clubhouse Security Committee** to act on its behalf in all matters of enforcement of rules governing access to and use of the Association's swimming pools.

The Committee shall be comprised of at least four persons with at least one being a member of the Board of Trustees.

The Board shall appoint the members of the Committee by separate resolution and shall designate one member to act as Committee Chair.

The Board shall update appointments to the Committee from time to time, as necessary.

The responsibility of the Pool and Clubhouse Security Committee shall be to promote compliance with Rules governing pool, clubhouse and other Common Area use.

Committee actions and procedures shall be subject to the Amended and Restated Bylaws 2024, Sections 5.2, 5.3, 5.4, 5.5, 5.6 and 5.7.

Committee's primary, but not exclusive, tool for promoting compliance with Rules governing pool use is the matching of the electronic record of key fob entries into the pool area with written sign-in record.

In the absence of a proper match, two members of the committee will review security video to verify non-compliance with rules for pool admission.

When at least two members of the committee concur that there was a violation, the Committee is authorized to deactivate the associated key fob and is required to immediately instruct Community Association Management (CAM) to generate a violation letter to the Owner of the key fob.

All violation letters shall be sent by both U.S. Mail and by email to the owner's registered addresses.

The letter will specify the date, time and nature of the Rules violation, the term of the deactivation penalty, and the amount of the Administrative Fee assessed by CAM for creating the letter.

(For a first offense, the Committee has the option of issuing a warning letter in lieu of deactivating the key fob.)

The letter shall also contain a copy of current pool rules, a copy of the current Board Resolution on penalties for pool rule violations.

The letter will contain instructions for making any appeal. Any appeal must be in writing and submitted through CAM.

Any appeal to CAM will be forwarded to the Committee for its consideration and its recommendation to the Board of Trustees at the next scheduled Board meeting.

By use of the key fob the Owner has agreed to accept the Board's decision as binding and without recourse.

Committee may use security video and other forms of documentation to confirm additional Pool Rules violations, and take such actions as provided for in this resolution.

Multiple violations attributable to one Use Pass event may be regarded as separate infractions and be subject to the schedule of penalties for cumulative violations.

Committee shall determine a regular schedule for its primary monitoring activity and report the same at each regular meeting of the Board of Trustees. The Committee's scheduling, monitoring and enforcement shall be consistent and without prejudice or favoritism. The Committee shall collect pool sign-in records each day and retain them for six months.

BOARD RESOLUTION
ESTABLISHING PENALTIES FOR
VIOLATIONS OF POOL USE RULES

MAY 2024

(proposed)

The following Schedule of Penalties for violations of rules governing the use of swimming pools in the Common Area of the Silver Creek Townhomes Association is adopted by resolution of the Silver Creek HOA Board of Trustees on _____ (date).

This schedule of penalties supersedes and replaces all previously established penalties for violations of rules governing swimming pool use.

Penalty Schedule

These penalties apply to each Owner of a Home and Use Pass in The Silver Creek Townhomes Association.

Any violation associated with a Use Pass shall be attributed to the Owner, whether the violation was committed by the Owner personally, or by anyone else who obtained access to the pools on the Owner's Use Pass.

In cases of multiple Owners of one Home, as it is in the case with voting rights, multiple owners of one home shall be considered a single undifferentiated entity.

The Clubhouse and Pool Security Committee, at its discretion, may choose to issue to a one-time **Warning Letter** before issuing a 1st Violation notice.

Warning Letter (discretionary): Carries administrative fee of $20 for notification

1st Violation: 30-day suspension of Owner's Use Pass, plus administrative fee of $20 for notification

2nd Violation: 120-day suspension of Owner's Use Pass, plus administrative fee of $20 for notification

3rd Violation: 1 year suspension of Owner's Use Pass, plus administrative fee of $20 for notification